



2025:UHC:6914

HIGH COURT OF UTTARAKHAND AT NAINITAL

Criminal Revision No. 490 of 2025

07 August, 2025

Inqalab Alam

--Revisionist

Versus

State Of Uttarakhand

--Respondent

Presence:-

Mr. Pradeep Chamyal, learned counsel for the revisionist.

Mr. Bhaskar Chandra Joshi, learned A.G.A. for State of Uttarakhand/respondent.

Hon'ble Pankaj Purohit, J. (Oral)

By means of the present criminal revision, the revisionist has put to challenge the judgment and order dated 20.02.2025 passed by learned Chief Judicial Magistrate, Champawat, in Criminal Case No.836 of 2020 *State Vs. Inqalab*, whereby, the respondent was convicted and sentenced to three months' simple imprisonment with fine of Rs.1,000/- under Section 279 IPC; one year's simple imprisonment with fine of Rs.20,000/- under Section 304A IPC and one month's simple imprisonment with fine of Rs.5,000/- under Section 427 IPC; with default stipulation of fine of total Rs.26,000/- six months' additional simple imprisonment and all the sentences were directed to run concurrently; as well as the impugned judgment and order dated 17.07.2025 passed by learned Sessions Judge, Champawat in Criminal Appeal No.09 of 2025 *Inqalab Alam Vs. State of Uttarakhand*, whereby, the appeal filed by the revisionist was dismissed and the judgment and order of his conviction and sentence was affirmed.



2. Learned counsel for the revisionist submits that at the time of incident, deceased-Lalmani Joshi was riding in a motorcycle with PW-3-Ganesh Dutt and PW-3 was driving the motorcycle, who did not have the driving license and was learning to ride motorcycle. He further submits that there is no fault on the part of the revisionist and the accident resulting in the death of deceased was not caused by the revisionist's rash and negligent driving, but was a sudden accidental incident beyond the control of the revisionist.

3. It is further contended by him that there is no evidence to show that the revisionist was responsible for the accident or that his rash or negligent act caused the death of the deceased. PW-1 Naveen Chandra Joshi and PW-3 Ganesh Dutt are highly interested witness, as they are son and brother respectively, of the deceased and the main eye witness Mr. Baldev Joshi was never examined by the prosecution.

4. Learned counsel for the revisionist further argued that the road, where the accident occurred, was in a very bad condition and on the said road, the construction work was also going on, thus, there, is no fault on the part of revisionist. He further argued that there was major contradiction in the statement of witnesses, as per the statement of PW-1 Naveen Chandra Joshi the site plan was prepared on 7th or 8th May, 2020, whereas, as per the statement of PW-7 (I.O.), the site plan was prepared on 18th May 2020.

5. It is submitted by learned counsel for the revisionist that the impugned judgments and orders passed by learned Trial Court as well as by the learned Appellate Court, are based on presumption, surmises



and conjectures, hence, are unsustainable. He also submits that there is no previous criminal history in credit of the revisionist and he has not convicted in any crime by any Court of law, hence, he deserves the benefit of Section 4 of the Probation of Offenders Act.

6. Per contra, learned State Counsel submits that there is no perversity in the impugned judgments and orders passed by learned Trial Court as well as by the learned Appellate Court while convicting and sentencing the revisionist. Both the learned Courts have rightly convicted and sentenced the revisionist after appreciating the evidences of the witnesses.

7. I have considered the submissions made by learned counsel for the parties and perused the judgments and orders impugned in the present criminal revision. The reasoning given by the learned Trial Court as well as by the learned Appellate Court while passing the impugned judgments and orders, is quite convincing and needs no interference. The learned Trial Court and learned Appellate Court had passed an elaborate judgment for recording the finding of conviction and this Court does not want to reiterate the same for the sake of repetition. The instant case is not one where any such illegality was committed by the learned Courts. In the absence of any legal infirmity either in the procedure or in the conduct of the trial, there is no justification for the High Court to interfere in exercise of its revisional jurisdiction. Learned counsel for the revisionist could not point out any perversity or any ground so as to interfere with the well reasoned judgments passed by the learned Trial Court as well as by the learned Appellate Court. Thus, this Court is of the view that no ground for interference, at all, is made out in this matter, as there



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is no illegality and perversity in the impugned judgments and orders.

8. In view of the above, the present criminal revision is bereft of merit and is accordingly dismissed *in-limine*.

9. Pending application(s), if any, also stands disposed of.

(Pankaj Purohit, J.)

07.08.2025

PN
PREETI NIGI